

Participant

Um, I don't consent to being

You

That's

Participant

recorded, but I can

You

all

Participant

still

You

right,

Participant

go ahead

You

ma'am.

Participant

and help

You

I'm,

Participant

you out.

You

I'm from the state of Texas and in Texas. We are a one party consent recording state as this pertains to a ongoing discrimination concern with T-Mobile employees. I'm doing this for your safety as well as mine. Just like you are. I'm

Participant

I

You
assuming that

Participant
underst-

You
your system is recording it. So. Yeah, we're good.

Participant
Um I don't consent to being recorded, but I can still help you.

You
Ma'am. If we're going to continue this dialogue. I'm sorry, I won't do it without being able to record it because I have no way of validating and proving anything you say or that I say after the fact, and then it just becomes my word against yours, and that doesn't seem very fair to either of us, does it?

Participant
I I understand so. Well I just want I I definitely want to help you out. I just want to advise I don't consent to being recorded though.

You
Okay, well, in the state of Texas, that doesn't matter. It's a one party consent state. So I don't have to actually get your consent. Why are you calling me?

Participant
Well, again, again, I'm still going to have you at, but before I proceed, I just want to advise a call may record for quality and training purposes. Is that okay?

You
I don't get a choice. So obviously, yes, it is.

Participant
Okay all right perfect. Well, the reason why I'm reaching out to you is I understand um that you're because you are continued on dissatisfaction with our executives um office, you know, with the device request for the Apple Watch. Um, I understand that you needed it, you know for medical, you know, services. Now, I also, I want to advise, you know, I, we did, I'll go ahead and offer, you know, an overall, you know, goodwill just a credit to help offset,

You
Ma'am,

Participant
like, the taxes, and

You
let

Participant
the

You
me

Participant
device

You
be, ma'am,

Participant
can.

You
please stop. Let me be very clear because I'm not feeling well

Participant
Mhm.

You
today and I'm having medical problems as it is. What you offered was tantamount to saying, hey, I'm sorry that we insulted you, humiliated you, made you leave a store in tears, here, have a couple of bucks to cover it, but we don't actually care. Meanwhile, I had to go out and purchase a device that does not work, much less with the technology I developed that is new for this new age that we're in. To monitor people like me. The whole reason I came to do business with your organization was because your organization has a long standing public profession of deep love and support for their small business community, their 1st responder community, and their disabled community. I am quite literally, the embodiment of all 3 of them, and the technology I developed is for that same community. And I was told that asking for a modification to your organization's credit policy, which

is within reasonable request per the ADA, as has been validated in prior trials. I got told it was the same as going into the electronics section at Walmart and demanding a television because I got hurt on the job. A novel, piece of technology that monitors my health and safety. Was compared to demanding a television from Walmart while I was made fun of and humiliated. They laughed at me in front of a store full of people and to top all of it all. I still. Don't have the ability to go and pay the deposit that y'all want for the technology that I need for my platform that I've used that I've developed. And I get it. You're looking at this from a business standpoint. I get it I'm looking at it from the standpoint. Of a 20 year high volume, 911 paramedic and field training officer that has varied over a dozen of my brothers and sisters I served with. And then because of injuries I sustained, in that job, in that career field. I'm now trying to live a life of some sort. And just get by as best as I can. On top of it, I continue trying to help people and I was made fun of and humiliated for it. I am not trying to be disrespectful to you whatsoever, but your offer of the, Basically covering the taxes and everything. No that was an insult. It was humiliating. And furthermore, my wife who is not the greatest fan of EMS technology or me. Used it as a wonderful opportunity to humiliating and make fun of me in our home. Because she sees this as y'all just laughing your asses off at me. Meanwhile, I'm actually still trying to find a way to continue developing the technology that I've been working on the past 3 years because it is that critical to the public good. So.

Participant

And and I understand your concern and and again, I do apologize, you know, your experience that you had, um, we took this very seriously. We

You

No,

Participant

already had some

You

you did not.

Participant

incident

You

I

Participant

reports.

You

did not feel like you took it seriously for 12nd. In fact, when Terry asked me, quote, what exactly is your disability again, unquote? I

Participant

mm.

You

felt like they were pretty much having a good goddamn time about it. And when you

Participant

right.

You

repeatedly popped down to me on the phone one night and told me how the ADA does not possibly apply in this case. I didn't feel like y'all were taking it seriously. Now, that may be just me, but again, I'm quite literally as a disabled retired 1st responder that has started a technology business to help disabled people. I assure you, I definitely don't feel the love that y'all advertise all over your website and everything.

Participant

And I understand, you know, where you're coming from, recurses. However, we're not able to modify the overall down payment of the Apple Watch, you know, ultra 2 that you are, you know, or you're asking for. Now, again. I did also, you know. I understand you need it for the health tracking purposes, but keep in mind. This is per apple's, you know, also, you know, disclosures, get all of the vital apps, you know, in the watch is technically for wellness purposes, it's not for medical

You

Ma'am,

Participant

use. You

You

ma'am,

Participant

know the blood

You

ma'am,

Participant

O-.

You

you need to stop. You are speaking about things that are not in your wheelhouse. I have been working with this technology. For many, many years now. I have been working with Apple technology. Since the 1990s. I actually have developer platform access through the Apple ecosystem. That's why it was developed for that. I know exactly what their policies about medical development or because I have been abiding by them the whole way. So I

Participant

I I understand

You

would appreciate it

Participant

I.

You

if you don't try to insult me.

Participant

Okay, and I and again, I just want to go hand to stick, you know, with what I'm looking at as far as the overall Apple products, but again, if you want, you know, we can definitely take a look at other watch devices, uh, we can take a look that way, it's not so much of a down

You

Um.

Participant

payment, but

You

Let

Participant

as far as, but it.

You

me ask you something. What exactly is it? That your organization feels, The American with Disabilities Act is full. After all, you are a public telecommunications company, a technology that is not a luxury, but a mandate to exist. In modern society, that's actually been pointed out in other legal precedents over the last couple of years. So, what exactly is it that y'all think I'm asking you for? Like, what, to give it to me for free? No,

Participant

No.

You

I'm asking that you understand, my credit was destroyed as a result of the injuries I received that led to 33 months of fighting for federal disability and homelessness as a result. The fact that you're

Participant

I

You

trying

Participant

I.

You

to get me to use or pay for a lesser system when this is, there are very specific reasons. The Apple Watch Ultra is the one that this technology was developed from. Why the Pro Max series is not a choice, but a necessity. And it revolves primarily, especially in the case of own, with the processor in the side of the device, as well as the camera system. Because it has real time, situational, capability, function and awareness.

Participant

And I understand, but I'm out again. I just want to go ahead over income and provide you other options. You know, I wasn't even doing a comparison between the Apple Watch Ultra 2 and the Apple Watch series 10. As far as the health and wellness, they're very spot on, as far as the similar, you know, features that you have. You know, again I understand you need the ECG app. The Apple Watch Series 10 also has the ECG app. But like I advise, you know, again, those are for

You

I'm

Participant
wellness purposes

You
sorry ma'am.

Participant
only, they're not

You
What?

Participant
intended for medical use.

You
Why are you telling me what apps I said I need from the watch? It's not the applications, I'm accessing. It is the hardware inside. Of the device, that my systems are built to utilize. This

Participant
Mhm.

You
isn't, I'm getting it because I like the way the complications look on this year's model. It's I've built a long piece of technology. That is patent pending. And it requires the functionality of that device. It specifically is built on the ultra one platform, but I've heard that since the ultra 2 came out, they discontinued the one, which doesn't surprise me.

Participant
What technology do you need on the watch? Ultra 2.

You
I would have to go home and pull up all my finals and go through them, but I know a lot of it has to do with the fall protection capabilities, along with the way the actual device is built, because when you're somebody like me who falls, very frequently, due to physical and uh, brain trauma and physical injuries. Well, let's just say I break a lot of stuff. Part of why I, I'm having the communication and technology problem that I am because I had these devices before, with

Participant

Mhm.

You

another carrier, and I broke, like 15 rowax, I had done all my original development on, and was unable to get it repaired because I was in the middle of transitioning services. Being disabled as Not very much fun, especially when you're still trying to get a tribute to the community.

Participant

I understand so you need this basically the overall software that is with

You

No.

Participant

the actual watch

You

No,

Participant

Ultra 2.

You

not the software. The hardware.

Participant

The

You

No,

Participant

technology.

You

the

Participant

The

You
hardware.

Participant
hardware.

You
That's a very specific. Differentiation. Because the

Participant
Understand.

You
hardware that's in the ultra 2, the ultra one, they are a different class of, um, Sorry, like I said, I'm already having medical products today. my brain's not working right? We'll probably keep all this written in at home. Um. Can't think of all thought, there's, A processor chip that is a higher capability series in the watch, ultra line, that my platform utilizes for real time on device computation.

Participant
Understand, so, well, I'm just doing an overall comparison, you know, in regards to Apple Watch Ultra 2, which I'm showing here, that one has an S 9 chip with a 64 bit dual core processor. But I understand, it's the hardware, you know, not the software that you're looking for as far as a watch ultra too. Now, you don't have to get the watch ultra 2 through T-Mobile. I understand that you're just trying, you just need accommodation for like a lesser, you know, down, you know, like a down payment or, you know, because I understand it's requiring a large down payment, but keep in mind, um, you can also get the Apple Watch Ultra 2 directly through Apple. Um, you can also get, you know, even the 3rd party on Amazon. You know

You
Yeah,

Participant
there's, you

You
ma'am

Participant
know,

You
ma'am.

Participant
there's a lot of other

You
Please,

Participant
prices available

You
please stop

Participant
that way.

You
insulting me. Please. I don't appreciate the way you're speaking to me. It comes off as very rude and condescending. I know very good and well, that I can go pay a \$1000 Cash out of my pocket to buy the device directly from Apple. I know that I can go to Best Buy and do the same. I could come to you, and

Participant
Mhm.

You
also do the same. Guess what? For 33 months. I didn't have a job because I got injured. Serving my community. I had to wait and fight for federal disability the same as every other person and I did. I thought it, and I won my case. I'm still trying to go on and help people. You're sitting here literally arguing with me. Over devices and technology about a platform and systems I've developed that you have no information on it all and yet you're trying to talk down to me and explain lesser devices to me. I want you to understand, this is the part that is the most upsetting. I haven't asked you for anything free. I ask that the down payment be addressed because of my conditions. Y'all are being so hard line on a down payment. Or something that is of a public good. I don't think you realize how insulting that looks to this side of the table. And, um, the fellow medics and EMTs, them sitting here going, Dude, what the hell? Y'all are dragging all this out. Well, professing all over your website, how much you support and embrace these communities? You're. Literally talking down to me. and

humiliating me. over a down payment, not the payment for the device. But the down payment. Think

Participant

No, it's

You

about

Participant

a

You

that.

Participant

down payment for the actual device. It's a pay, it's a down payment for the device itself.

You

I, I,

Participant

It's not a down paying for services. It's a down

You

For

Participant

payment for

You

the

Participant

the

You

device.

Participant

device,

You

Yes, I know exactly

Participant
the

You
what

Participant
cause,

You
it's for, ma'am. And that's what I said.

Participant
mhm.

You
You don't have to try and reword it. I know what I said. The down payment for the device. I know. I can go get a

Participant
Right.

You
line with y'all now. I realize that. In fact, I have to go in this next week and pick up a

Participant
Mhm.

You
couple of sound cards for prototyping. But I cannot

Participant
Understand.

You
get the hardware that the technology was built and designed for. Because y'all are fighting with me

over the down payment for the hardware. I'm just really burning with curiosity. How many TikTokers and YouTube influencers and random whatever people do y'all just hand stuff out to? Meanwhile, one of the people that y'all wildly profess, your organization, passionately reports, as worded on your website. One of them is sitting here saying, hey, I have something that is going to

Participant

Right.

You

change things and help people and you're arguing with me over a down payment and insulting me about it. Just think about how that sounds. Okay? Maybe I'm wrong. Maybe I am. If I am. Well, the EMS community of Fort Worth is wrong also, because none of us can figure it out. We're all confused by it, but that's

Participant

Mhm.

You

what lawyers are for, and that day will come because unfortunately, I'm sorry, but especially after this phone call, I'm gonna have to proceed forward with filing paperwork with the Department of Justice, and they will ultimately be the ones that make the determination, not you, not me, not somebody in an office, but an actual. Judge that, That was the one, that's their bag, and that's what they doing. More importantly, that's what we need him to do because obviously, the disabled individual that is paying to use your service, Does not agree with y'all's view of the ADA and I'm not the only one. By a long measure, and Like said, Maybe I am wrong. And if I am on, hope someone will teach me why. But when they do it, I'm going to need them to go ahead and explain to me how it is, y'all justify. Quite literally using the blood and sweat of myself and my colleagues to bolster your organization's reputation. Because as the 1st responder, the way you talk about this on your website, and then the treatment that I've received, Those were not the same company. What y'all have

Participant

And

You

done

Participant

I

You
to me

Participant
appreciate

You
has been

Participant
your

You
humiliating.

Participant
feedback,

You
Degrading.

Participant
right.

You
And

Participant
And I.

You
disrespectful, and that as a disabled individual. That is. I'm sorry, that's not allowed. Okay?

Participant
Right, and I appreciate your feedback and recursions, but again, the offer that I originally do for the taxes and the vice connector charge, I will go ahead and extend that because I know it expired back on August 15th. um, I understand, you know, Apple is gonna be coming out with new watches, you know, a lot of times when that happens, the previous watches do go down in price, but as of right now, we're not able to modify the overall down payment. We do have to buy by the

You
Oh,

Participant
fair credit act,

You
also.

Participant
you know,

You
Oh,

Participant
in regards to.

You
ma'am, also, the fact that I keep getting notifications and offers for every other device, except those. That's not helping any appearance, any, because I'm getting them daily. I get notifications and offers for tablets. I've gone in and seeing what devices I do qualify for without having to ask that y'all make any modifications and see, here's the thing. A reasonable modification, as long as it does not fundamentally alter the nature of the business. I have yet to be able to figure out how it is. Y'all doing something that is in the best interest of the community at large. And backing up what you say on your website, how that seemingly fundamentally alters the nature of the business. Again. I could be wrong, maybe I am. I'm from a very different world than you guys, and I acknowledge that fully. Okay.

Participant
I understand, I will go ahead and extend the offer of the 145. So if you decide you want to take advantage of that, I will go ahead and send you

You
I'm

Participant
an email um

You

sorry,

Participant
if

You
what,

Participant
you decided

You
what 145

Participant
one.

You
are you talking about because the money you offered me before? I'm assuming y'all already dealt with because I paid \$70 to you guys at the 1st of the month to clear up what was left over from last month,

Participant
Mhm.

You
Bill? So what 145? are you talking about?

Participant
The 145 is when I originally spoke with you.

You
Yeah,

Participant
Last

You
isn't

Participant
month,

You
that all like.

Participant
you know in

You
That

Participant
regards to this.

You
should

Participant
No, the

You
have already been

Participant
145.

You
dealt with. You said you

Participant
The

You
were going through.

Participant
145 was. I advise you know I sent

You

Ma'am.

Participant

an email if you reply back to my email if

You

And

Participant

you decided wanted to pick.

You

we spoke on the phone, and you said that you were going to go ahead and take care of that right then that day. Those were the words that you

Participant

I

You

told

Participant

have

You

him.

Participant

my

You

I

Participant

okay.

You

have your email

Participant

I

You
also. I also have

Participant
advise,

You
the

Participant
mhm.

You
transcript of that phone call. where you said you would take care of it then because now it

Participant
So.

You
sounds like you're going to retroactively put money back on my bill if I don't agree

Participant
No, I'm not

You
to

Participant
gonna

You
something. Because

Participant
make,

You
right

Participant
right.

You
now my

Participant
I'm not

You
bills.

Participant
gonna make any

You
My

Participant
changes,

You
bill right

Participant
right.

You
now

Participant
I'm not

You
is

Participant
going to make

You
clear.

Participant

any changes. That is correct though, Robert, so again, I will go ahead and extend the 145 that I offer to help offset the taxes and the device connector charge for the Apple Watch as a goodwill dress or credit, but as far as the down payment, if you want to get the Apple Watch ultra 2 Yes, there is going to be a down payment for that device, and I did go ahead and take a look into that for you. So for the um for the ultra 2 it is a \$601.99 down payment plus a taxes that have you remained at the time of purchase. Would you like me to give you a call on Saturday? Okay, I can do that. You're you too Robert take care.